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IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

CRWP-12708-2024
Date of decision: 01.01.2025

JAGSIR SINGH AND ANOTHER

Versus

STATE OF PUNJAB AND OTHERS

.....Petitioners

...Respondents

CORAM: HON’BLE MR. JUSTICE DEEPAK MANCHANDA

Present: Mr. Raman Kumar, Advocate, for the petitioners.

DEEPAK MANCHANDA, J.(ORAL)

1. The instant petition has been filed under Article 226 of the Constitution of India for issuance of a writ in the nature of mandamus directing respondents No.2 & 3 to protect the lives and liberty of the petitioners from the private respondents No.4 to 8.
2. Learned counsel for the petitioners contends that both the petitioners are major, aged about 40 years and 42 years respectively. In support thereof, copies of Aadhaar Cards of both the petitioners have been appended (Annexures P-1 & P-2).
3. Learned counsel for the petitioners contends that both the petitioners have develop link with each other and are decided to live together in a live-in relationship against the wishes of respondents No.4 to 8. Learned counsel for the petitioners further contends that petitioners have submitted a representation dated 30.12.2024 (Annexures P-3) to respondent No.2-Senior Superintendent of Police, Moga mentioning the grievance raised herein, however the same has not been decided till date. It is further contended by learned counsel for the petitioners that petitioners would be satisfied if the representation dated 30.12.2024 (Annexure P-3) is decided by the respondent No.2-Senior Superintendent of Police, Moga.



4. After going through the contents of the representation dated 30.12.2024 (Annexure P-3) the same seems to be vague and half-baked, wherein no specific details have been mentioned.
5. Faced with this situation, learned counsel for the petitioners submits that the present petition be treated as representation and the same be ordered to be decided within a time bound manner by looking into the grievance of the petitioners.
6. Notice of motion restricted to respondents No.1 to 3 only.
7. At this stage, Mr. Malkiat Singh, DAG, Punjab accepts notice on behalf of respondents No.1 to 3 and has no objection if appropriate directions are given for deciding the representation submitted by the petitioners.
8. In view of the above, the present petition is disposed of with a direction to respondent No.2-Senior Superintendent of Police, Moga to decide the representation of the petitioners after taking into consideration all the relevant aspects, within a period of four weeks from the date of receipt of a certified copy of this order, in accordance with law.
9. The Registry is directed to send a copy of this order along with copy of the petition to respondent No.2-Senior Superintendent of Police, Moga for requisite compliance.

01.01.2025
Jyoti Thakur

(DEEPAK MANCHANDA)
JUDGE

Whether speaking/reasoned	Yes/No
Whether reportable	Yes/No